

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT REQUIRING INSURERS THAT USE A WILDFIRE RISK SCORE
5 TO PROVIDE THE REQUESTER WITH CERTAIN INFORMATION TO ENHANCE TRANSPARENCY;
6 PROVIDING TIMELINES FOR THE INSURER TO RESPOND; AND PROVIDING DEFINITIONS."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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10 NEW SECTION. **Section 1. Wildfire risk score in underwriting.** (1) An insurer that uses a wildfire
11 risk score in connection with the underwriting or rating of real property shall, on the request of an insured, the
12 insured's insurance producer, or an applicant for property insurance coverage for the wildfire risk score, provide
13 the following information to the insured or the applicant to enhance transparency:

- 14 (a) the current wildfire risk score of the property;
15 (b) the range of possible wildfire risk scores under the model used;
16 (c) the name of the person or entity that created the wildfire risk score;
17 (d) the date on which the wildfire risk score was created; and
18 (e) the key factors that adversely affected the wildfire risk score of the property.

19 (2) An insurer shall provide to a property owner in writing the information referred to in subsection
20 (1) by no later than 15 days after receiving a request for the information.

21 (3) For the purposes of this section, the following definitions apply:

- 22 (a) (i) "Insurer" means admitted insurers in this state.
23 (ii) The term does not apply to nonadmitted insurers.
24 (b) "Wildfire risk score" means a numerical value, rating, or categorization derived from a statistical
25 tool, modeling system, algorithm, or other process that is used for the purpose of predicting the future wildfire-
26 related insurance loss exposure of a property.

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28 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an

1 integral part of Title 33, chapter 16, and the provisions of Title 33, chapter 16, apply to [section 1].

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